

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 06/10/2026 TIME: 9:00 and 9:01 A.M.

			• Documentation supporting utilities, insurance, medical bills, etc. • Any other documentation reasonably demonstrating the claimed monthly expenses. Upon receipt and review of the documentation, the Court will determine whether the debtor's earnings are necessary for the support of the debtor and her dependents under CCP §706.050 and whether the claimed exemption should be sustained in whole or in part. The Hearing on Claim of Exemption will be continued to 7/24/26 at 9:01 in Department 12.
LINE 3	24CV441704	Jesse Montoya vs Maurice McIntosh et al	Hearing: Compromise of Minor's Claim Absent objection, the Court will sign the proposed order e-filed 4/30/2026
LINE 4- 6	24CV452389	Steven Wass et al vs Kejing Huang et al	Hearing: Compromise of Minor's Claim Absent objection, the Court will sign the proposed orders e-filed 5/8/2026

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Calendar Line 1

Shiue-Mei Kou et al vs Chih-Ling Chou et al
22CV407623

Plaintiffs' Motion to Lift Forum Non Conveniens Stay

PROCEDURAL BACKGROUND

On May 17, 2024, the Court stayed this action pursuant to the doctrine of forum non conveniens in favor of litigation in Taiwan. Plaintiffs now move to lift the stay, contending that Taiwan is not a suitable or available alternative forum because Taiwan courts lack jurisdiction over Defendants and because any Taiwan civil action is now barred by the applicable statute of limitations.

LEGAL STANDARD

Code of Civil Procedure section 410.30 authorizes a California court to stay or dismiss an action when, in the interest of substantial justice, the action should be heard in another forum.

Under *Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, the Court must first determine whether the proposed alternative forum is suitable. A forum is generally suitable when the defendant is subject to jurisdiction there and the action is not barred by the statute of limitations. (*Morris v. AGFA Corp.* (2006) 144 Cal.App.4th 1452, 1464.)

Where a stay has been imposed, a plaintiff may seek relief upon a showing that the alternative forum is unavailable or otherwise unsuitable. However, a party ordinarily must make a good-faith effort to pursue relief in the designated forum before claiming that forum is unavailable. (*See Diaz-Barba v. Superior Court* (2015) 236 Cal.App.4th 1470.)

ANALYSIS

The Court finds that Plaintiffs have made substantial efforts to pursue relief in Taiwan. The record reflects that Plaintiffs initiated proceedings in Taiwan and sought review through multiple governmental and judicial channels. Accordingly, the Court does not find that Plaintiffs acted in bad faith or deliberately attempted to frustrate the foreign proceedings.

The dispositive question is whether Plaintiffs have demonstrated that Taiwan is presently unavailable as a forum.

Plaintiffs contend that Taiwan lacks jurisdiction over Defendants because the alleged conduct occurred in California and Defendants reside in California. Plaintiffs further rely on rulings and communications from Taiwan authorities suggesting that California is the more appropriate forum.

Defendants respond that Taiwan jurisdiction remains available under Article 25 of the Taiwan Code of Civil Procedure because Defendants have expressly agreed to submit to Taiwan jurisdiction and not contest it. Defendants have submitted sworn declarations stating that they will appear in Taiwan and accept jurisdiction if a civil action is filed.